

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

18. NATHANIEL MARTELLE V. DARUIS MARTELLE

24FL0993

Respondent filed a Request for Order (RFO) on July 14, 2026, seeking a change in venue from El Dorado County to Alameda County. Petitioner was served by mail on July 20, 2026. Respondent asserts Alameda County is more convenient due to physical disability as well as a history of domestic violence between the parties.

Petitioner filed a Responsive Declaration on July 28, 2026. It was mail served on Respondent the same day. Petitioner argues El Dorado County is the appropriate venue, as the parties resided in the county together until July of 2026. Petitioner further asserts Respondent may appear remotely, thereby alleviating the need for travel.

Pursuant to Civil Procedure Section 397, the court may, upon a properly noticed motion, transfer any matter where the court designated in the complaint is not the proper court. Cal. Civ. Pro. § 397(a). The burden is on the moving party to establish grounds for a change of venue. *Fontaine v. Sup. Ct.*, 175 Cal. App. 4th 830 (2009). The court has reviewed the filings in this matter and finds El Dorado County is the appropriate venue. Additionally, there is a future hearing already set in El Dorado County, and as such, transfer would not be proper while that hearing is pending. Therefore, Respondent's request is denied.

All prior orders remain in full force and effect. Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #18: RESPONDENT'S REQUEST TO TRANSFER VENUE FROM EL DORADO COUNTY TO ALAMEDA COUNTY IS DENIED AS EL DORADO COUNTY IS THE APPROPRIATE VENUE. ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT. RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS

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19. KYRA MCAFFEE V. MAXWELL MCAFFEE (JOINED PARTY: BRIAN AND CORRINE BUNCH) PFL20210499

Joined Parties filed an Order to Chow Cause and Affidavit for Contempt on January 12, 2026. Petitioner and Respondent were properly served. Parties appeared on March 19, 2026 for the initial arraignment. The court appointed the office of the Public Defender to Petitioner, subject to their review and determination of eligibility.

Parties appeared on June 11, 2026, for further arraignment. The office of the Public Defender declared an overwork conflict; as such, they were thanked and relieved. The Alternate Public Defender's Office was subsequently appointed. Counsel then requested the matter be continued. The court granted the request to continue.

Upon review of the court file, the court notes the parties are scheduled to appear for a hearing on September 24, 2026, at 1:30 PM. For judicial economy, the court continues this matter to join with the hearing set for September 24, 2026, at 1:30 PM in Department 5.

All prior orders remain in full force and effect. Joined Parties are directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #19: FOR JUDICIAL ECONOMY, THE COURT CONTINUES THIS MATTER TO JOIN WITH THE HEARING SET FOR SEPTEMBER 24, 2026, AT 1:30 PM IN DEPARTMENT 5. ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT. JOINED PARTIES ARE DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.